Project 2: IRAC Analysis Memorandum

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IRAC Analysis Memorandum

TO: Alice Chong, Esq.

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RE: Liability Assessment of Gilford Pines Condominium Association

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Issue

Whether Gilford Pines Condominium Association had actual and/or constructive notice of a dangerous condition to afford it the opportunity to take reasonable care to fix the condition?

Rule

In Maryland slip-and-fall cases require the injured party to prove that the property owner had notice of the hazardous condition and failed to address it—either by warning invitees, removing the hazard, or remedying the situation promptly. This includes satisfying elements of negligence: duty, breach, causation, and damage. In *Deering Woods Condo. Ass'n v. Spoon*, 833 A.2d 17 (Md. 2003) the Maryland Court held that there was no sufficient evidence of the property owner's notice of black ice on the pathway where an invitee fell and sustained injuries. In this case, an invitee slipped and fell on ice on the property owner's walkway and alleged the defendants were negligent as the flowing water from the drainage ditch nearby caused the ice on the pathway. However, the property owners cleared snow from the walkway before the invitee's fall. There was nothing unusual about the passing of water over the pathway by the drainage ditch, and there had been no prior complaints of ice, accidents on ice, or repeated ponding water at the site of the accident over the past 20 winters. The court reasoned that the property owner was not required to conduct continuous inspections to determine whether ice had formed on the walkway as the property owner had removed the most recent snowfall from the pathway, no unusual inspections, and no prior reports about the hazard at the site of the accident over the past 20 winters. Similarly, in *Joseph v. Bozzuto Mgmt. Co.*, 918 A.2d 1230 (Md. Ct. Spec. App. 2007) the Maryland Court of Special Appeals held that the invitee failed to prove the property owner and the manager of the building had constructive notice of the slippery steps ("oil substance" hazard) before the fall. In this case, the invitee claimed he slipped on a translucent "oily substance" on the property owner's stairs and injured himself. The invitee and the witnesses did not see any substance on the stairs before the fall; the area was regularly inspected and cleaned, including the week before the incident; no substance was observed on the stairs during recent inspections and cleaning; the property manager inspected the stairs the day before the fall and saw nothing on the stairs. The court reasoned that the mere existence of a substance on the stairs

was not enough to establish the property owner's liability, the area was regularly inspected and cleaned, no substance was observed on the stairs during recent inspections and cleaning, and the invitee could not prove how long any substance had been on the floor. The court further reasoned that the property owner was not required to continually inspect the stairs for hazards. The same reasoning applies in *Maans v. Giant of Md., L.L.C.*, 871 A.2d 627 (Md. Ct. Spec. App. 2005) as the Maryland Court of Special Appeals held that the invitee failed to prove how long the liquid had been on the floor before the fall, demonstrating the property owner's notice of the hazard on the store floor. In this case, an invitee slipped and fell on a wet floor in a grocery store, injuring herself, claiming that she slipped on water on the floor. The injured party failed to establish how long the liquid had been on the floor before she fell or how long it may have been there. There were no detailed cleaning records based on the employees. In addition, no employees saw water on the floor before the fall. The injured party reported that her clothes were dry after claiming that she slipped and fell on water. The court reasoned several notes: neither the injured party nor a witness saw the liquid on the floor, and there was no evidence that employees noticed it or how long the liquid had been on the floor, and the injured party's clothes were dry after the fall. The court further reasoned that even if the store had conducted reasonable inspections before the fall, the store would not have detected the hazard since assuming the time length or how the hazard conditions existed was not sufficient evidence to prove it led to the causation of foreseeable injuries before the accident. So, these cases illustrate that in slip-and-fall cases, a property owner's liability depends on whether they had notice of the hazardous condition and the reasonableness of their inspections. The courts focused on the timing and the owner's knowledge of the hazard, emphasizing that an owner is not expected to continuously inspect for conditions like ice or slippery substances without notice of their existence.

Application

Here, all three cases demonstrate that slip-and-fall cases in Maryland require injured parties to prove that the property owner had notice of the hazardous condition prior to the injured party's injury and failed to address it—either by warning invitees, removing the hazard, or remedying the situation promptly. This includes satisfying elements of negligence: duty, breach, causation, and damage. The cases also demonstrate that continuous inspection is not a feasible or practical duty to foist upon the proprietor unless a case involves exceptional circumstances. Although reasonable inspection is the proprietor's responsibility, an injured party must prove that these inspections would allow the property owner to discover a hazard and the time to remedy the hazard or warn the injured party about the hazard. When applying the principles of these cases to the facts of Hastings' case, it becomes clear that Gilford Pines Condominium Association did not have actual or constructive notice of the black ice that caused Hastings' fall. Specifically, in *Deering Woods Condo. Ass'n v. Spoon*, 833 A.2d 17 (Md. 2003), an invitee slipped and fell on ice on the property owner's walkway and alleged the defendants were negligent as the flowing water from the drainage ditch nearby caused the ice on the pathway. However, the property owners cleared snow from the walkway before the invitee's fall. There

was nothing unusual about the passing of water over the pathway by the drainage ditch, and there had been no prior complaints of ice, accidents on ice, or repeated ponding water at the site of the accident over the past 20 winters. The Hastings case is similar, with regular inspections by clearing snow from the walkway showing no reports or complaints of hazardous icy conditions before Hastings' fall, concluding that the Gilford Pines Condominium Association had no notice of the black ice. Moreover, in *Joseph v. Bozzuto Mgmt. Co.*, 918 A.2d 1230 (Md. Ct. Spec. App. 2007), the invitee claimed he slipped on a translucent "oily substance" on the property owner's stairs and injured himself. The invitee and the witnesses did not see any substance on the stairs before the fall; the area was regularly inspected and cleaned, including the week before the incident; no substance was observed on the stairs during recent inspections and cleaning; the property manager inspected the stairs the day before the fall and saw nothing on the stairs. The Hastings case is similar, the Gilford Pines Condominium Association followed a similar approach with regular inspections and no reports of icy conditions before the fall which concludes that the association had no reason to foresee the black ice as a potential hazard. For these two cases, like the property owners in *Deering Woods* and *Joseph*, it becomes clear that Gilford Pines conducted regular inspections and maintenance, including snow removal. There were no prior reports or complaints of icy conditions, similar to the lack of prior incidents in *Deering Woods* and the absence of any observed substance in *Joseph*. Just as the *Deering Woods* court found no duty to continuously monitor for naturally occurring ice formation from a drainage ditch, Gilford Pines cannot be expected to constantly inspect the sudden formation of black ice unexpectedly. Furthermore, in *Maans v. Giant of Md., L.L.C.*, 871 A.2d 627 (Md. Ct. Spec. App. 2005), an invitee slipped and fell on a wet floor in a grocery store, injuring herself and failed to establish how long the liquid had been on the floor before she fell or how long it may have been there. Based on the inspections by the employees, there were no detailed cleaning records nor witnesses of seeing the liquid on the floor before the fall. Later, the injured party reported that her clothes were dry after claiming that she slipped and fell on water. This case demonstrates the inability to prove how long the liquid had been on the floor was a legally significant factor in the court's decision. Similarly, Hastings cannot establish when the ice formed or if it had been reported to the association before the fall. This inability to pinpoint the duration of the hazardous condition is crucial to Hastings' claim. Without evidence regarding the ice's formation time or any prior notice, it is difficult to argue based on Hasting's claims that the association had constructive notice of the hazardous black ice before Hastings' fall. The mere fact that the ice existed at the time of the fall is insufficient and Hastings seems to have failed to demonstrate that Gilford Pines knew or should have known of the dangerous condition. Based on these cases, Hastings' trial court finding will likely align with the appellate court's holdings in *Deering Woods Condo. Ass'n v. Spoon*, 833 A.2d 17 (Md. 2003), *Joseph v. Bozzuto Mgmt. Co.*, 918 A.2d 1230 (Md. Ct. Spec. App. 2007), and *Maans v. Giant of Md., L.L.C.*, 871 A.2d 627 (Md. Ct. Spec. App. 2005). In all three cases, the appellate courts emphasized the necessity of proving notice – actual or constructive – of the hazardous condition. All those cases also underscored the lack of evidence demonstrating that the property owners knew or should have known about the

hazard in time to take preventative measures. Given the similarities between Hastings' situation and the circumstances in these cases—particularly the lack of evidence regarding the duration of the black ice and the presence of regular inspections by Gilford Pines—it is probable that the trial court, following the reasoning of these appellate decisions, would also find that Hastings failed to establish notice. The trial court is bound by the precedent set by these appellate cases and will likely apply the same legal principles to Hastings' case. Gilford Pines can build its defense on the lack of notice and mirroring the defenses in *Deering Woods*, *Joseph*, and *Maans*. Gilford Pines can argue that they did not know the black ice before Hastings' fall and that their regular inspections and maintenance routines, including snow removal, as evidence of their reasonable care. Since there is no prior complaints or reports about icy conditions in the area, it supports Gilford Pines' claim of no notice before Hasting's fall. In contrast, it is considerable to notice that it may be less likely that the trial court could deviate from the appellate holdings. If Hastings were to present other evidence not present in these cases—testimony from witnesses who saw the ice forming and reported it to Gilford Pines, or evidence demonstrating a pattern of recurring ice formation in the specific location—the trial court might find that Gilford Pines had notice. For instance, a counterargument for Gilford Pines' defenses presented earlier is the absence of a duty to continuously inspect. Just as the court in *Deering Woods* declined to impose a duty to constantly monitor for naturally occurring ice, Gilford Pines can argue that they cannot be expected to patrol their property continuously for the sudden formation of black ice. This argument aligns with property ownership and maintenance responsibilities where requiring constant surveillance would be an unreasonable and impractical burden. This defense underscores the limitations of a property owner's responsibility, especially concerning transient hazards like black ice that can appear and disappear rapidly. However, these counterargument cases would most likely not happen based on the facts and analysis demonstrated. Thus, the trial court will apply the established legal principles from *Deering Woods*, *Joseph*, and *Maans*, finding that Hastings failed to prove Gilford Pines had notice of black ice and then the appellate level would apply the law— if the trial court's decision is consistent with the established precedent—making Gilford Pines unlikely to be held liable for Hasting's injuries.

Conclusion

In conclusion, Gilford Pines Condominium Association is unlikely to be held liable for Hastings' injuries under the negligence law, nor to provide remedies, as there is no evidence of actual or constructive notice of the black ice. The absence of prior complaints or reports, along with no indication that the ice had been present long enough to create constructive notice, means the association could not have foreseen the hazard. Continuous inspection is not a practical or feasible duty for the property owner unless exceptional circumstances exist. While reasonable inspections are required, an injured party must prove the inspections would have allowed the owner to discover the hazard and take action to remedy or warn against it. Therefore, since the injured party has no substantial evidence that the property owner had noticed the hazard before

the fall, Gilford Pines Condominium Association is not liable for Hastings' injuries, nor do they need to provide remedies.

References

Deering Woods Condo. Ass'n v. Spoon, 833 A.2d 17 (Md. 2003)

Hastings. UMGC. [UMGC]. n.d. https://leocontent.umgc.edu/content/umuc/tus/lgst/lgst201/2252/course-resources.html?ou=1275910

Joseph v. Bozzuto Mgmt. Co., 918 A.2d 1230 (Md. Ct. Spec. App. 2007)

Maans v. Giant of Md., L.L.C., 871 A.2d 627 (Md. Ct. Spec. App. 2005)